

FIRST ENDORSEMENT

Andre Applewhite, Chief Prosecutor, Civilian Complaint Review Board to Deputy Commissioner Tarek A. Rahman, Department Advocate's Office, March 4, 2025. Contents noted. Recommend approval of the negotiated settlement agreements in DADS No. 2022-24985 AND DADS No. 2024-31968 against PO David Damico, Tax Registry No. 957509. These cases was conferenced on February 4, 2025, before Assistant Deputy Commissioner of Trials Anne Stone, who approved the negotiated penalty of New York City Police Department Imposed Training for DADS No. 2022-24985 AND DADS No. 2024-31968, after accepting the finding(s) of substantiation of the allegations contained in the Charges and Specifications. Charges and specifications will be dismissed for disposition purposes.

Andre D. Applewhite

Andre Applewhite

Chief Prosecutor

New York City Civilian Complaint Review Board

DISAPPROVED

JUN 20 2025
Jessica Tisch
JESSICA S. TISCH
POLICE COMMISSIONER



POLICE DEPARTMENT

June 16, 2025

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

Re: CCRB Case No. 202305057 (Incident Date: June 2, 2023) involving Police Officer David Damico, Tax No. 957509 (PODS Case No. C-030352)

Dear Mr. Darche:

The Police Commissioner has reviewed the recommendation of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matter involving Police Officer David Damico and has determined that no disciplinary action is warranted.

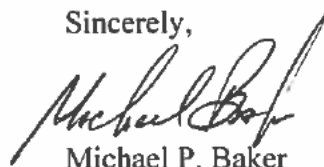
After reviewing the totality of the circumstances in this case, the Police Commissioner has determined the actions of Police Officer Damico were reasonable to maintain a safe distance between him and the complainant, while he was attempting to drive away from the location. In this matter, Police Officer Damico directed the complainant to move away from the police vehicle. Police Officer Damico's alleged misconduct occurred only when he had already returned to his vehicle and was preparing to leave. The complainant followed Police Officer Damico, disregarding orders to stay away from the vehicle, and held his cellular telephone within an arms-length of Police Officer Damico near the open driver's side window. The complainant was allowed to successfully record nearly the entire interaction, during which he received a summons. Police Officer Damico stated his position of being seated within his vehicle was tactically disadvantageous, and due to this he extended his arm outward to prevent the complainant from getting closer to his vehicle, and knocking down the complainant's phone was incidental to his attempt to create space between him and the complainant.

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Thus, the Police Commissioner intends to dismiss the charges and specifications in this matter and impose no disciplinary action for the allegation that he interfered with the use of a recording device.

Sincerely,

A handwritten signature in black ink, appearing to read "Michael P. Baker". The signature is fluid and cursive, with a prominent initial "M".

Michael P. Baker
Assistant Chief
Commanding Officer
Police Commissioner's Office

cc: Michael Martinez, Esq.



ERIC L. ADAMS
MAYOR

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Dr. MOHAMMAD KHALID
INTERIM CHAIR

June 16, 2025

The Honorable Jessica Tisch Police Commissioner
New York City Police
Department One Police Plaza
New York, New York 10038

Re: CCRB v. PO David Damico
PODS Case No.: C-030352

Dear Commissioner, Tisch:

I am writing in response to the letter from Deputy Chief Michael P. Baker, dated June 16, 2025, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to dismiss the Charges and Specifications against Police Officer David Damico. I am responding to Deputy Chief Baker’s notification.

Deputy Chief Baker stated that The Police Commissioner has determined the actions of Police Officer Damico were reasonable to maintain a safe distance between him and the complainant, while he was attempting to drive away from the location. Thus, the Police Commissioner intends to dismiss the charges and specifications in this matter and impose no disciplinary action for the allegation that he interfered with the use of a recording device.

CCRB respectfully disagrees with The Police Commissioner’s determination. Police Officer Damico was aware of § 87(2)(b) holding his cell phone during the incident but was not aware whether § 87(2)(b) was still holding his phone when he approached his vehicle. PO Damico did not observe any sudden movements from § 87(2)(b) but stated sudden movements do not matter in this situation as if someone wanted to stab him in the face, they could do it instantly. PO Damico stated § 87(2)(b) was approximately two feet from the driver’s seat of his police vehicle when he approached him. After being shown footage from his BWC, PO Damico was asked if he was able to see what § 87(2)(b) was holding when he approached the police vehicle, to which PO Damico stated he had no knowledge of what § 87(2)(b) was holding in his hand at that time and was unaware the item was § 87(2)(b) cell phone.

NYPD Admin Guide 304-21 states that individuals have a right to lawfully observe and/or record police activity. An officer should not intentionally prevent, or attempt to prevent, an individual from recording police activities.

Given that PO Damico acknowledged that § 87(2)(b) was previously holding a phone and BWC captures § 87(2)(b) holding an object that distinctively resembles a phone, CCRB discredits PO Damico's account that he did not know what § 87(2)(b) was holding prior to moving § 87(2)(b) hand away. Furthermore, § 87(2)(b) approaching the police vehicle while recording was not interfering with any police action as § 87(2)(b) had already received his summons and the vehicle stop had concluded. As such, § 87(2)(b) was lawfully recording at the time. PO Damico also failed to articulate any specific observations regarding § 87(2)(b) at the moment he approached that would constitute § 87(2)(b) as a threat to PO Damico's safety. PO Damico's justifications were based on a hypothetical analysis of what § 87(2)(b) could have done, but was not based on any present factors that would have made § 87(2)(b) a threat to his safety (PO Damico also stated that § 87(2)(b) is not known to assault officers).

Given the above, CCRB determined based on a preponderance of the evidence that PO Damico was aware that the object in § 87(2)(b) hand was indeed his cell phone and his swiping at § 87(2)(b) hand directly interfered with § 87(2)(b) right to lawfully record police activity.

Notwithstanding the above, CCRB has recommended that this matter be dismissed for disposition purposes and PO Damico receive NYPD imposed training. Hence, it is respectfully requested that you permit the negotiated plea agreement to stand in this matter.

Respectfully submitted,

Andre D. Applewhite

Andre Applewhite, Chief Prosecutor
NYC Civilian Complaint Review Board